

**PLACER COUNTY SUPERIOR COURT
FRIDAY, CIVIL LAW AND MOTION
DEPARTMENT 1
COMMISSIONER CHRISTINE S. DEHR
TENTATIVE RULINGS FOR AUGUST 28, 2026 AT 8:30 A.M.**

10. S-CV-0053907 EDMONDS, LANCE v. RED WOLF LODGE AT OLYMIC VALLEY

Defendant's Motion to Strike Portions of the First Amended Complaint (FAC)

The motion is granted. (Code of Civil Procedure section 435(b)(1), 436(a), (b).)

Defendant seeks to strike all references to punitive damages and requests for attorneys' fees in the FAC, asserting that the allegations within the FAC are not sufficiently pleaded to support any such requests. The court has carefully considered the allegations within the FAC. Even when providing the pleading a liberal construction and reading the document as a whole, the allegations within the FAC are insufficient to plead punitive damages or an award of attorney's fees.

Plaintiff has not filed any opposition to the current request. In light of the pleading deficiencies and the failure of plaintiff to oppose the current challenge, the court grants the motion without leave to amend.

The language referencing punitive damages in paragraphs 85; 98; 112; and p. 27:21 in the FAC is stricken.

The language referencing attorneys' fees at p. 27:22 is stricken.

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